IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**No.: CP-28-CR-594-2023** **Declaration of Lashada Lee pursuant to Pa.C.S.§6206 in Support of Pro Se Omnibus Motion**

I, Lashada Lee, an adult citizen of Maryland, hereby state as follows under the penalties of perjury, in support of this Motion:

1. I am the defendant in the above-captioned action.

2. In 2019 I sued in the State of Maryland for divorce from my ex-husband, John Rex. I was awarded custody of my two children, Hannah Lee and Skye Rex, on October 7, 2019. (EXHIBIT A, Custody Order — the "Initial Custody Order," or "2019 ICO").

3. The State of Maryland was enabled by law to exercise continuing jurisdiction to change or modify the 2019 ICO until some date thereafter so long as the children or one of the contestants "continue[d] to reside in Maryland." (See MD FL §9.5-202)

4. By March 17, 2020, none of the parties continued to reside in Maryland: Rex had moved to Florida in 2014, the children and I moved to Pennsylvania in July, 2019.

5. Yet Maryland entered an ex parte order (EXHIBIT B, 2020 EPO) on that day and then the Maryland Court actually overreached by entering yet another order three days later that purported to give

"law enforcement" the right to enforce the 2020 EP, without following any of the procedures set forth in Maryland, Pennsylvania or federal law providing for registration and enforcement of lawful custody orders from sister states. (EXHIBIT C, March 20, 2020 Enforcement Order, or "2020 EnfOR"). The 2020 EnfOR allowed for the use of force by law enforcement officers against me and my family.

6. The DA then began a prosecution against me without the appropriate legal foundation, charging me with two violations of 18 Pa.C.S. §2904 although the fact situation did not provide any of the elements of a felony charge for interference with custody.

7. I did not realize this because I was not given notice, I am not a lawyer, had never been involved in any illegal activity or exposed to criminal procedure in any state, and trusted that any criminal defense lawyer licensed in Pennsylvania would zealously defend me so I did not try to second guess my court-appointed public defender. I knew that I had no criminal intent at any time and that I was only and always acting as any proper parent should, but I did not know the legalities involved or how to discover them.

8. I have tried to make this a cogent and comprehensible motion, and I will file it at the earliest possible moment I can prepare it carefully and properly. I believe Mr. Jones was ineffective because he surely should have known a Motion to Dismiss the indictment would have been in order to defend me; he should have filed this Motion immediately after the arraignment, but there is little that can be done about that now. I don't know why neither of my two subsequent attorneys tried to do this either. Finding a new attor-

ney now has been all the more difficult because I have spent so much money on the attorneys who failed to take this important step, but I continue my search to retain a competent attorney while filing pro se. (And I believe I will be able to retain counsel before October 29.)

9. In 2023, I met Dr. Amy Neustein, Ph.D., author of the landmark book, Neustein, A. and Lesher, M., *From Madness to Mutiny: Why Mothers Are Running from the Family Courts and What Can Be Done About It*, Oxford University Press, 2025, that described a situation that has apparently become fairly prevalent: A child discloses sexual abuse to her mother (most likely scenario) who believes her; the mother then turns to the public agency for child protection services ("CPS") and to the family court for help, but a scary situation develops. Fathers accused of abuse can hire lawyers who believe the best defense is a good offense, so they aim a full-blown attack on the mother, calling her a liar, a hysteric, mentally unstable, vindictive, etc., and presenting the fathers as innocent parents being unfairly and maliciously "alienated" from their children. Then proceedings can take place blaming the mother for any fear, anger or shyness the children demonstrate towards the father, which can cause all sorts of psychological stressors to complicate the family problems. Any adverse reaction the children display can then be blamed on the mother and the more she tries to defend, the more defensive and unreasonable she appears and the more her words and acts are misconstrued and criticized. Now the family is raggedly "dysfunctional" and any circumstances can be misinterpreted (deliberately and/or inadvertently) so that ultimately, the mother is often seen as unruly and recalcitrant. Such a mother is usually then stripped of custody and even visitation be-

cause she is considered unfit and untrustworthy. When she tries to resist and continue to protect her children, she can be jailed. I saw that I was in a terrible position, likely to not only lose my children but also my freedom.

10. Hearing and reading about this terrified me because it was exactly what was happening to me. Dr. Neustein referred me to another author/activist, Ms. Michelle Etlin, who had written the first book on this subject back in 1995, Rosen, L. and Etlin, M., *The Hostage Child: Sex Abuse Allegations in Custody Disputes*, Indiana University Press, Bloomington, IN, 1995. Etlin suggested I attend the Battered Mothers Custody Conference in Albany, NY (the "BMCC") and there I learned that this problem is prevalent in the family courts of all 50 states and DC. Mothers were going into hiding to protect children from abuse in numbers large enough to cause documentary films ("Children of the Underground" about mothers hiding their children!) and university studies on the phenomenon including studies at Georgetown University (where Professor Joan Meier, Ph.D. teaches and publishes). Organizations were set up to "raise awareness" but there were no organizations providing pro bono counsel to these women in either civil or criminal courts. A few pro bono counsel over the six decades that this was happening took appeals to various appellate jurisdictions but most appellate courts simply said they would not disturb "trial court discretion" so there was very little legal precedent set about the issue. That remains true to this day, apparently.

11. The Legislature of Pennsylvania obviously became aware of this phenomenon at some point and, admirably, tried to deal with it legislatively, because the statute that punishes custodial inter-

ference, 18 Pa.C.S.§2904, actually recognizes the problem and provides for the affirmative defense of "protection from danger of harm" in subsection §2904(b)(1). So the Legislature put in place the very defense that I will use if this Motion is not granted and I am forced to defend myself at trial. In order to show this Court the merit of my case, however, I state as follows:

(a) I married John Rex ("Rex") in 2003 but we lived together only briefly because he was aggressive, violent and abusive towards me. Two children (Hannah Lee and Skye Rex) were born during the marriage. I did not divorce Rex earlier because my religion discourages divorce. But we lived together only briefly and sporadically and he did not often visit the children.

(b) Rex moved to Florida in 2014. In or about July, 2017, I brought the children with me to Florida and we visited with Rex, but before I returned to Maryland, my older daughter Hannah disclosed to me that Rex had molested her at a time when I was not present. I did not directly confront Rex because I was still afraid of him. But I took Hannah to the local CPS Agency in Florida for help and guidance.

(c) A social worker/abuse investigator, Mr. Quan Williams, interviewed Hanna there and believed her disclosure was credible; he opined that Hannah had indeed been molested. So I naturally also believed it; he was an authority in these matters. The agency did not open a case, however, because my children and I were not Florida residents, so they advised me to return to Maryland, not to let Hannah be alone with Rex, and to obtain trauma therapy in Maryland for Hannah. They gave me paperwork to that effect but in the many moves we have had to make

from then until now, I lost the paperwork. Copies should be available in Washington County Child Advocacy Center, however, and if I go to trial I will have to subpoena them as well as the Florida CPS file).

(d) I followed the CPS Agency's instructions. Ms. Amanda Bishop, the Director of the Washington County, MD Child Advocacy Center, provided trauma therapy for Hannah for a year in Maryland. Since I was not charged for this therapy I assume it was paid for by the State of Maryland. Ms. Bishop also held several sessions with me to educate me in the ways to deal with Hannah's progress in healing; we both understood our place in Hannah's recovery. I was made aware of how these experiences can negatively affect a child's growth and welfare, even damaging their lives as adult women. Foremost in my mind at all times was my responsibilities as a mother. Whatever I had to do to help Hannah recover from this event, I would do my utmost to comply.

(e) First and foremost, in order to support a child's recovery from child sexual abuse, one must believe the child, let them know you are sorry it happened but it is not their fault, and you must let them express their own feelings. If you blame them or try to tell them to stop or deny their own feelings about it, that makes it worse. So I would never let Hannah think I wanted to deny her feelings or that I wanted her to "clam up" about the abuse, or tell her to pretend it hadn't happened or anything like that. She knows what happened and she knows I believe her and always did and always will.

(f) The course of our court proceedings developed as ominously

and as counterintuitively as the many cases I heard about at the BMCC. The MD Court appointed a "best interests attorney" (the Maryland term for a guardian ad litem), Ms. Erika Barrett Johnson (the "BIA"). I perceived that she was hostile to me from the beginning. She terminated Hannah's trauma therapy and substituted "reunification therapy" for Hannah because she did not want either Hannah or me to continue believing that there had been a trauma. Ms. Bishop, of course, did believe it. The reunification therapist concluded, finally, that Hannah could not be successfully reunified with her father. So the BIA appointed psychologist Ms. L. Alexandra Mirabelli, Ph.D. ("Mirabelli"), to evaluate me and Rex as parents and perhaps also to opine on the veracity of the sex abuse allegations. Both Hannah and I, however, continued to believe what we knew had happened. I believe it to this day without any doubt.

(g) Also predictably (according to the research on these cases), the BIA and Mirabelli worked together to rehabilitate the relationship between Rex and the children, even taking them together with Rex to nice events and outings, perhaps at State expense. I began to see that they were promoting the rumor that I was mentally unbalanced because I believed the disclosures Hannah had made to me and tried to protect her.

(h) In July, 2020 I moved away from Maryland and to Franklin County, Pennsylvania. This was not a clandestine move. I registered Hannah in public school and she started school in September, 2019. By the beginning of February, 2020, my children and I had lived in Pennsylvania for more than six months and Pennsylvania was the home state of my children under both Maryland and Pennsylvania law. At this time, Hannah

was being exposed to visitation with Rex without me present to protect her, and she was suffering from anxiety and stomach aches and nervous illnesses that caused her to miss school frequently and disturbed her sleep and her attention, but her therapy had been terminated and there was little I could do to prevent or ameliorate these problems.

(i) On March 17, 2020, the BIA made a motion to abruptly change physical and residential custody from me to Rex, with whom the children had never lived. The BIA attached Mirabelli's report, which called me "unstable" and said I made "false allegations" of sexual abuse. I had no opportunity to object to anything in the report, to adduce any evidence in my own defense or to subject Mirabelli to cross examination. Rex was given the right to come to Pennsylvania and take the children to Florida with him at some undisclosed time after the order was entered. (EXHIBIT D, March 17, 2020 BIA's "Emergency" Motion to immediately deprive me of physical custody.)[1] She styled it an "emergency motion" and asked it to be done "immediately" but did not recite any statutory emergency recognized by Maryland or Pennsylvania law. (Under the terms of the UCCJEA, a state can make an emergency motion but only if the child is present in that state and upon certain specific conditions; Hannah was not in Maryland on March 17, 2020.) That motion asked for the order to be granted without even an ex parte hearing in Chambers or on Zoom. I had absolutely no opportunity to be heard.

[1]The BIA knew I had moved away from the Maryland address she listed on the Motion but perhaps she resurrected the old address to give the impression that I was still in that state; I cannot accuse her of anything I cannot prove. But she called the Pennsylvania school Hannah attended for information; she arranged for law enforcement in Pennsylania to prosecute me; she undoubtedly knew that we no longer resided in Maryland when all this took place without notice to me.

(j) The motion was nevertheless granted totally and without exception that very morning at 11:07 a.m., less than four hours after it was filed. [Please see EXHIBIT B, the 2020 EPO; EXHIBIT D, the BIA's Motion; and EXHIBIT E, the Docket Sheet of Case C-21-FM-18-000163 in Maryland,]

(k) While the divorce/custody case in Maryland was taking place, I was working, taking care of my mother as she was dying from cancer, and raising my children. I am a good mother. No child abuse or neglect allegations have ever been brought against me in any jurisdiction. But I did not try to study the law, and tended to believe whatever my attorneys told me (after all, that is why we hire attorneys). So I did knew nothing about jurisdiction, the PKPA, the UCCJEA, or the rules of civil or criminal litigation. I only knew that my daughters were in danger and it was my sacred duty as their mother to do my best to protect them.

(l) In 2023, I was living in hiding and home-schooling my daughters. They were doing well. During the time we were away, my daughters did not feel pressured or scared, and Hannah revealed more to me about the abuse she had suffered. I tried to help her with prayer and comfort but I could not risk trying to place her in therapy again. She did have much less anxiety and hardly ever was ill, as she had been during the time we were in Pennsylvania while the custody battle was ongoing and making her feel unsafe. But eventually I ran out of savings to support myself and my children, so I resigned myself to returning to Pennsylvania and turning myself in because the criminal charges had already been drawn against me.

(m) I returned to Franklin County on or about May 10, 2023. The Police interviewed me; The Franklin County CPS agency took my children and I was jailed. The arraignment took place and I was appointed counsel from the PD's office. This case was underway.

(n) My appointed lawyer, Mr. Enoch Jones told me that I could get 14 years in prison if I went to trial, and he tried to convince me that I could not win; he said there were only two alternatives: risk trial in a county where he thought I would surely lose, or plead guilty and accept a plea bargain offered by the DA. He did not even explain the specific statutory affirmative defenses to me. The offer was unacceptable and I refused to plead. He apparently didn't try to make any counter-offer to the DA.

(o) I replaced the PD with a private attorney, Ms. Sherry Cooper, who did not tell me anything about the possibility of a pre-trial motion to dismiss charges, but who did tell me about the affirmative defense of "protection from danger of harm to the children's welfare" and who said I had a strong case and she expected me to win. When she told me, however, that she was not going to personally represent me at trial but was assigning that to a young inexperienced associate, I became frightened and replaced her with attorney Michael Walker, Esq.

(p) Mr. Walker did nothing to prepare for trial or to investigate the charges against me, which I now believe were essentially bogus. Instead, he tried to coerce me into pleading guilty in return for a lengthy period of probation, the terms of which would be absolutely no contact with my daughters for many years. This smacks of a custody decision rather than a criminal sentence.

After all, a criminal sentence occurs after a pre-sentence investigation, and even incarcerated parents get visitation with their children. It did not make sense and it was much worse than what the PD had previously offered as a plea deal. Mr. Walker acted like he had no power to negotiate a better outcome and he flatly told me I could not win.

(q) A combination of factors made me very suspicious of what was going on in my case by this point in time. And then Ms. Etlin told me she had spoken to several attorneys with general questions about remedies. She said words to the effect of: "A New York attorney I trust asked why on earth you haven't filed a motion to dismiss the Indictment?" But she didn't know any criminal defense attorneys who practice in Pennsylvania. So I began to research the possibility, using the key words "motion to dismiss indictment criminal law Pennsylvania."

(r) Before that, I was unaware something like that could be done. We don't see these procedural actions on TV or in the movies and we don't see them in news reports on crime. We see dramatic courtroom scenes in front of juries; we see verdicts; we don't see motions and affidavits. Ms. Etlin encouraged me to do my own research and I have been diligent in doing so.

12. What I have learned convinces me that this Motion is appropriate and meritorious. I have done my best to put it together in a comprehensible way and when I discovered (in mid-September) the time limitation imposed by Rule 579, I did more research to learn how to excuse my tardiness in filing and to make it worthy of this Court's consideration. Therefore I pray Your Honor extends the time for filing it and hears this motion on its merits.

Verification — Unsworn Declaration
Statement Pursuant to the Pennsylvania
Uniform Unsworn Declarations Act (42 Pa.C.S. § 6206):

I, Lashada Lee, do hereby declare under penalty of perjury under the law of the Commonwealth of Pennsylvania that the foregoing statement is true and correct.

Signed on the _____ day of October, 2026, at _____, Maryland

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Signature